

**Student Engagement & Leadership Development
California State University, Monterey Bay**

CONSTITUTION AND BYLAWS

[Name of Organization] at California State University, Monterey Bay (CSUMB)

ARTICLE I NAME

Section 1 The name of this organization shall be the [name of organization] at CSUMB.

ARTICLE II PURPOSE

Section 1 The purposes of this organization are [describe the organization's mission or purpose statement].

ARTICLE III AUTHORITY

Section 1 This organization is a recognized student organization (RSO) at California State University, Monterey Bay (CSUMB) and adheres to all campus policies as set forth in the Student Organization Handbook

Section 2 [If applicable: This organization is affiliated with [name of national or affiliated organization].]

ARTICLE IV MEMBERSHIP

Section 1 Membership in the organization shall be open to all those regularly-enrolled CSUMB students who are interested in membership. There shall be no other requirements for admission to regular membership. Each regular member has equal rights and privileges.

Section 2 In accordance with state law and the regulations of the California State University, no organization shall discriminate on the basis of race, religion, national origin, ethnicity, color, age, gender, marital status, citizenship, sexual orientation, or disability.

Section 3 Eligibility for membership or appointed or elected student officer positions shall not be limited on the basis of race, religion, national origin, ethnicity, color, age, gender, gender identity, marital status, citizenship, sexual orientation, or disability. The organization shall have no rules or policies that discriminate on the basis of race, religion, national origin, ethnicity, color, age, veteran status, gender, gender identity, marital status, citizenship, sexual orientation, or disability.

Section 4 This organization shall prohibit all members and officers from engaging in hazing or committing any act that injures, degrades or disgraces any fellow student.

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Section 5 This organization shall comply with Title 5, Section 41301, Standards for Student Conduct.

Section 6 Members [shall/shall not] be required to pay dues.

Section 7 Members shall be required to attend at least [# %] of the organization's regularly scheduled meetings.

Section 8 *[Optional: Some organizations have additional categories of membership, such as honorary membership. If this applies, include the categories of membership along with associated privileges.]*

ARTICLE V OFFICERS

Section 1 The officers of the organization shall be the [titles of officers].

Section 2 Powers and Duties of Officers:

- a. The President shall serve as the chief executive officer of the organization, shall preside at all meetings of the organization and shall prepare the agenda for meetings. The President shall be the official spokesperson of the organization, representing the policies, views, and opinions of the organization in its relations with the campus and community at large. The President shall appoint all committees and committee chairs. The President shall be an ex officio member of all committees. The President shall have such further powers and duties as may be prescribed by the organization.
- b. The Vice President shall preside at organization meetings in the absence of the President. The Vice President shall perform all legal duties assigned by the President. The Vice President shall assume the office of President if the office becomes vacant.
- c. The Treasurer shall handle all financial affairs and budgeting of the organization, maintain all necessary accounting records, and prepare monthly financial reports for the membership. These records shall be maintained in accordance with generally accepted accounting principles. The Treasurer shall collect and deposit all dues and fees. The Treasurer shall maintain bank accounts in the organization's name, requiring signatures of both the Treasurer and President for authorized disbursements.
- d. The Secretary shall take minutes at all meetings of the organization, keep these on file, and submit required copies to all organization members. The Secretary shall be responsible for all organization correspondence and shall keep copies thereof on file. The Secretary shall maintain membership records for the organization.
- e. [List duties of any additional elected or appointed officers.]

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Section 3 Qualifications necessary to hold office in this organization are as follows:

- a. Have a minimum cumulative campus and overall GPA of 2.3;
- b. B. Have a minimum 2.3 GPA in the term preceding the semester of candidacy/consideration for appointment;
- c. C. Maintain at least a 2.3 GPA for each term in office including the term in which they are elected or appointed;
- d. Maintain at least 6 units per term while holding office (3 for graduate students);
- e. Have earned no more than 150 units (50 for graduate students).
- f. Additionally, [list other additional qualifications, such as academic requirements, length of time one has been a member, length of time one can hold office, etc.].

ARTICLE VI SELECTION OF OFFICERS

Section 1 The [list of elected officers] are elected [annually or each semester/quarter]. Elections are held [at the end of each fall/spring semester/quarter] and shall take place at a regularly scheduled meeting of the organization at which a quorum is present. At least one week's notice shall be provided for any meeting at which an election is to be held.

Section 2 Nominations for officers shall be made at the regular meeting immediately preceding the election. Nominations may also be made from the floor immediately prior to the election for each office. Members may nominate themselves for an office.

Section 3 The officers shall be elected in this order: [List order, usually starting with the President].

Section 4 Officers shall be elected by majority vote. If no candidate receives a majority vote, a runoff election shall be held between the two candidates receiving the highest number of votes. In the event of a tie, there shall be a revote. If the result of the revote is still a tie, the election shall be decided by the flip of a coin.

Section 5 Votes shall be cast by secret ballot; however, when there is only one candidate for an office, a motion may be made to elect the candidate by acclamation.

Section 6 [Optional] The following officers shall be appointed by the [President or Executive Committee]. [Indicate if ratification by a majority vote of the membership is required.]

Section 7 Officers shall assume office on [the first day of the semester following the election] and shall serve for [length of the term of office].

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Section 8 Officers may be recalled from office for cause. To initiate a recall election, a petition signed by [specify number, such as one-third of the total number of voting members] must be submitted at a regular meeting and a recall vote shall be taken at the next regular meeting. The officer subject to recall shall be given written notice of the recall at least 72 hours prior to the meeting at which the recall vote will be held and shall be given an opportunity to provide a defense. A two-thirds vote is required to remove an officer.

Section 9 If the position of President becomes vacant as the result of resignation, ineligibility or recall, the Vice President shall assume the office of President. Vacancies in any other elected office shall be filled by an election held at the next regular meeting where the vacancy was announced. Nominations may be made at the meeting where the vacancy is announced, and nominations may also be made from the floor at the time of the election. The President may appoint an interim officer to fill the vacancy until the election is held.

ARTICLE VII **MEETINGS**

Section 1 Regular meetings shall be scheduled [weekly, bi-weekly, monthly] during the academic year.

Section 2 Special meetings may be called by the President or a majority of the Executive Committee. All members must be given a minimum of 24 hours notice prior to the meeting time.

Section 3 Business cannot be conducted unless a quorum of the membership is present. A quorum for this organization is defined as a majority of the voting membership. *[Note: Organizations may choose have a lower quorum, such as one-third, or a specific number of members.]*

Section 4 Members must be present to vote. Absentee or proxy voting is not permitted.

Section 5 In order to vote a member must be in good standing. *[State what constitutes "good standing." This may include payment of dues or meeting attendance requirement. If there is an attendance requirement, specify the number of excused and/or unexcused absences that results in loss of voting privileges, and define what constitutes an excused absence, if applicable.]*

ARTICLE VIII **ADVISOR(S)**

Section 1 The organization shall [elect/appoint] an individual employed as a faculty or staff member by CSUMB to serve as the university advisor to this organization. Auxiliary staff and student assistants are not eligible to serve as advisors. The advisor shall fulfill the responsibilities specified in the Inter-Club Council Handbook. Advisors shall serve on an academic year basis or until their successor has been selected.

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ARTICLE IX EXECUTIVE COMMITTEE

Section 1 The Executive Committee shall consist of the elected and appointed officers, with the advisor(s) serving as non-voting member(s).

Section 2 The Executive Committee shall meet weekly during the academic year. Special meetings may be called by the President or a majority of the Executive Committee. All members must be given 24 hours' notice of the meeting. A quorum shall consist of a majority of the Executive Committee members.

Section 3 [Optional] When necessary, Executive Committee business can be conducted via email or via online meetings.

Section 4 The Executive Committee shall have general supervision of the affairs of the organization between meetings and is authorized to take action when action must be taken prior to the next meeting.

Section 5 The Executive Committee shall report to the membership all actions taken between meetings. Except when it is too late to do so (such as when a contract has been executed), any actions taken by the Executive Committee may be rescinded or modified by the membership by a majority vote.

ARTICLE X STANDING AND AD HOC COMMITTEES

Section 1 The organization shall have the following standing committees: [List all standing committees, such as Membership, Fund Raising, Program, Social, Bylaws, Nominations, Finance, Public Relations, etc.]

Section 2 The duties of each of Standing Committees are as follows:

[List the duties for each of the committees listed above.]

Section 3 The President shall have the authority to establish ad hoc committees as may be necessary from time to time to carry out the work of the organization.

Section 4 The President shall appoint the chairpersons and members of all committees [Optional: subject to ratification of the membership].

ARTICLE XI FINANCES

Section 1 Membership dues shall be [\$XX per semester/quarter/academic year].

Section 2 Dues shall be paid by [specify due date, such as "second week of each semester/quarter/academic year."] [Optional: There shall be a late fee of [\$XX/\$XX per week].

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Section 3 This organization has the ability to assess the membership for special purposes. Assessments shall be determined by a quorum of the membership at a regularly scheduled meeting

Section 4 Members who have not paid their dues or special assessments by the due date shall be considered as not being in good standing and shall lose all membership privileges, including voting, until the dues are paid.

Section 5 The Executive Committee shall propose an annual budget to be voted upon no later than the second regular meeting of the academic year. Any unbudgeted expenditures shall be approved in advance by the membership. When financial decisions must be made between meetings, the Executive Committee is authorized to approve expenditures not exceeding [XXXX].

Section 6 Organization funds shall not be used to purchase or reimburse members for alcoholic beverages.

ARTICLE XII DISCIPLINE OF MEMBERS

Section 1 All complaints alleging violations of the Student Conduct Code, Title 5, section 41301, et seq., shall be investigated pursuant to Executive Order 1073 and/or 1074 (in cases involving allegations of unlawful discrimination, harassment or retaliation based on protected status). Investigations and other proceedings under Executive Orders 1073 and 1074 shall be conducted by campus administration, not student organizations, and this organization shall refer any complaints alleging subject matters covered by Executive Orders 1073 and 1074 to the campus Vice President for Student Affairs or other designee for investigation and resolution.

Section 2 Complaints may also be brought to the attention of the Executive Committee or The Student Engagement and Leadership Development Office. A written charge may be filed with the Executive Committee or The Student Engagement and Leadership Development Office. That Executive Committee or The Student Engagement and Leadership Development Office shall review the charges and may conduct a preliminary investigation if deemed appropriate. If the preliminary investigation concludes that misconduct appears to have occurred, the Executive Committee or The Student Engagement and Leadership Development Office shall conduct a hearing on the matter. The member alleged to have engaged in the misconduct shall be given at least 72 hours notice of the hearing and be given an opportunity to present a defense. By a majority vote, the Executive Committee or The Student Engagement and Leadership Development Office shall determine whether misconduct occurred. If it determines that misconduct did occur, the Executive Committee or The Student Engagement and Leadership Development Office shall prepare a report to the membership of its findings and recommended sanctions, which may include expulsion, suspension, or lesser sanction(s)

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including, but not limited to, a reprimand, removal from office, a fine or corrective remedies.

Section 3 The membership shall review the hearing report in executive session, and the member accused of misconduct shall have an opportunity to rebut the information in the report. After providing a statement to the membership, the member accused of misconduct shall leave the room for the remainder of the deliberations.

Section 4 The membership shall vote first on whether the member has engaged in misconduct. If by a two-thirds vote, the membership determines that misconduct has occurred, the membership shall then by a two-thirds vote, determine appropriate sanction(s). The accused member shall be immediately notified of the outcome.

Section 5 By a two-thirds vote, the membership may reinstate a member who has been suspended or expelled.

ARTICLE XIII **AMENDMENTS**

Section 1 Proposed amendments to these bylaws shall be presented to the membership, in writing, one meeting prior to the meeting where the amendment will be voted upon.

Section 2 Bylaw amendments require approval by two-thirds of the voting members present at a regular meeting. The amendment shall be effective immediately unless otherwise stipulated in the amendment.

Section 3 A copy of any amendments to these bylaws must be submitted to Student Engagement and Leadership Development at CSUMB within two weeks after adoption.

These bylaws were adopted on [date] and most recently revised on [date].

Print name, sign, and date:

President/Chair of Student Organization

Date